

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Wurtzel	Team: Squad #06	CCRB Case #: 201706138	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/21/2017 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/21/2019	Precinct: 79		
Date/Time CV Reported Fri, 07/28/2017 2:58 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/28/2017 2:58 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Jena Leocadio	05460	956044	079 PCT
2. SGT Paul Scocca	03616	935713	INT CIS
3. POM Frank Redmond	07663	953304	079 PCT
4. Officers			079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Clint Elie	07909	955899	079 PCT
2. SSA Donald Abrams	00085	921890	E S U

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . POM Frank Redmond	Discourtesy: Police Officer Frank Redmond spoke discourteously to § 87(2)(b)	B . Unfounded
C . POF Jena Leocadio	Abuse: Police Officer Jena Leocadio failed to show the search warrant to § 87(2)(b)	C . Unsubstantiated
D . SGT Paul Scocca	Abuse: Sergeant Paul Scocca failed to show the search warrant to § 87(2)(b)	D . Unsubstantiated

Case Summary

On July 28, 2017, this complaint was filed with the CCRB via telephone by § 87(2)(b).

On July 21, 2017, at approximately 6:05 a.m., the Emergency Service Unit (ESU) cleared the ground floor of § 87(2)(b)'s home at § 87(2)(b) in Brooklyn with a search warrant issued to Police Officer Thomas Marfoglio of the 79th Precinct. The warrant covered the “basement” or ground floor of the location. The ESU team departed the location. Upon entering the location, the 79th Precinct officers noticed that the building was a single family home and cleared the upper floors of the building (**Allegation A: Abuse of Authority – Search of Premises, Exonerated**).

Police Officer Frank Redmond of the 79th Precinct allegedly said “Who the fuck is in the house?” and “Get the fuck on the floor,” as he approached § 87(2)(b) (**Allegation B: Abuse of Authority – Discourtesy, Unfounded**). Police Officer Jena Leocadio of the 79th Precinct and Sergeant Paul Scocca of the Criminal Intelligence Section, were both holding copies of the warrant and allegedly failed to show the warrant to § 87(2)(b) (**Allegations C and D: Abuse of Authority – Failure to Show Search Warrant, Unsubstantiated**). The officers obtained a second warrant that covered the entirety of the building and resumed their search of the location. § 87(2)(b) and his cousin, § 87(2)(b) were arrested and were charged for with § 87(2)(b) (Board Review 01-02).

No video was obtained for this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Officers entered and searched § 87(2)(b) in Brooklyn.

§ 87(2)(g)

It is undisputed that officers entered and searched § 87(2)(b) in Brooklyn on July 21, 2017. It is further undisputed that the initial warrant held by the officers who conducted this entry only covered the basement of § 87(2)(b). Officers entered the location, cleared the upper floors of the building, and obtained a second warrant before conducting a more intrusive search of the upper floors of the house.

Search Warrant number § 87(2)(b) was issued by the Honorable Judge § 87(2)(b) to Police Officer Marfoglio on § 87(2)(b) (**Board Review 03**). The pre-execution plan indicates that Police Officer Marfoglio was not involved in the entry and Police Officer Leocadio stated that warrants are often issued to officers who are not directly involved in the execution of the warrant (**Board Review 04**).

Search Warrant number § 87(2)(b) was issued to Police Officer Leocadio by the Honorable Judge § 87(2)(b) on § 87(2)(b). (**Board Review 03**).

Article 690.50 of the Criminal Procedure Law permits officers who have obtained a valid judge-issued search warrant to enter and search the location (**Board Review 05**).

The courts have held that officers who mistakenly enter the wrong residence while in possession of a warrant that accurately describes the premises entered are not in violation of the law. Furthermore, the entry in the incorrect location does not invalidate the search warrant. In the case of People v. Lopez, officers entered the apartment described on a search warrant and discovered that this location was not of interest to their investigation. Officers immediately verified the location of their search warrant upon the realization that they had made entry into an area not strictly within the search warrant's purview. People v. Lopez, 266 A.D. 2d 735 (1999) (**Board Review 06**).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A be exonerated.**

Allegation (B) Discourtesy: Police Officer Frank Redmond spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that he observed his cousin, § 87(2)(b) walk downstairs shortly after he heard officers enter the location and heard a male officer yell, "Who the fuck is in the house?" and "Get the fuck down." § 87(2)(b)'s daughter was with § 87(2)(b) and § 87(2)(b) was the only other civilian in the house. Therefore, § 87(2)(b) the only person to whom these comments could have been directed.

§ 87(2)(b) confirmed that he was the first civilian to encounter the officers and that he was ordered to get on the ground. § 87(2)(b) did not allege hearing an officer use profanity while speaking with him. Police Officer Redmond and Police Officer Leocadio confirmed that they were the first officers to encounter § 87(2)(b) Police Officer Leocadio is a female and Police Officer Redmond is a male. Police Officer Redmond denied using profanity. All of the other officers interviewed in regards to this investigation denied hearing any officer use profanity.

§ 87(2)(g)

It is therefore recommended that **Allegation B be unfounded.**

Allegation (C) Abuse of Authority: Police Officer Jena Leocadio failed to show the search warrant to § 87(2)(b)

Allegation (D) Abuse of Authority: Sergeant Paul Scocca failed to show the search warrant to § 87(2)(b)

§ 87(2)(b) alleged that he asked multiple officers to see a copy of the warrant and that these officers ignored him or declined to show him the warrant. § 87(2)(b) specifically asked Police Officer Clint Elie of the 79th Precinct, and Police Officers Redmond and Leocadio to see the warrant. § 87(2)(b) did not allege hearing his cousin ask to see a copy of the warrant.

Police Officers Ellie, Leocadio and Redmond did not state that they heard any civilian ask to see a copy of the warrant and did not state that they showed any warrant to a civilian. Sergeant Scocca stated that he showed a copy of the original search warrant to § 87(2)(b) and permitted him to read the warrant in its entirety.

§ 87(2)(g)
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§ 87(2)(g). It is therefore recommended that **Allegations C and D be unsubstantiated.**

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed two prior complaints with the CCRB (**Board Review 07**).
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- § 87(2)(b) was involved in one previous complaint with the CCRB (**Board Review 08**).
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§ 87(2)(b)
- Police Officer Redmond has been a member of the NYPD for four years and has had one prior CCRB allegation within one case and no substantiated allegations filed against him. § 87(2)(g) (**Board Review 09**).
- Police Officer Leocadio has been a member of the NYPD for four years and has had six CCRB allegations within one case and no substantiated allegations filed against her. § 87(2)(g) (**Board Review 10**).
- Sergeant Scocca has been a member of the NYPD for 13 years and has had 12 allegations within five cases and six substantiated allegations filed against him. § 87(2)(g) (**Board Review 11**).

- In CCRB case number 20100236, Sergeant Scocca improperly searched a vehicle and a person, conducted an improper frisk, and used discourteous language. Sergeant Scocca received Command Discipline B.
- In CCRB case number 201200232, Sergeant Scocca performed an improper stop and received instructions.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to the arrests of § 87(2)(b) and § 87(2)(b)
- An inquiry has been sent to the Comptroller's Office of the City of New York to determine whether a Notice of Claim was filed in regards to this incident. The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 6

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date
Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date